
Journal

2001 PLD 956

Court

SUPREME COURT

Date

2001-03-12

Appeal No.

CRIMINAL APPEAL NO 170 OF 1999

Judge

ABDUR REHMAN KHAN, ,HAMID ALI MIRZA AND TANVIR AHMED KHAN

Parties

MUHAMMAD IMRAN ALIAS IMRANI APPELLAIT VERSUS THE STATE RESPONDENTS

Lawyers

TUFAIL MASIH V. THE STATE 1985 SCMR 838 AND SODAGAR V. THE STATE 1972 SCMR 161 REF.SAEED-UR-REHMAN FARRRUKH, ADVOCATE SUPREME COURT FOR APPELLANT. ARSHAD ALI CHAUDHARY, ADVOCATE SUPREME COURT FOR THE STATE.

Statutes

PENAL CODE (XIV OF 1860) - S. 302 CONSTITUTION OF PAKISTAN (1973) - ARTICLE 185(3)
PENAL CODE (XLV OF 1860) - S. 302(B) PENAL CODE (XLV OF 1860) - S. 302 PENAL CODE (XLV BF 1860) - S. 302

Judgment

JUDGMENT '

. ABDUR REHMAN KHAN, J.-Muhammad Imran, appellant alongwith his brother Muhammad Zafar, was tried for the murder of Muhammad Tariq. The learned Additional Sessions Judge by judgment dated

29-3-1994, convicted the appellant under section 302, P.P.C. and sentenced him to death but the co-accused was acquitted. A learned Division Bench of the High Court dismissed the appeal moved by the appellant against his conviction and sentence and answered the Murder Reference in affirmative. The High Court also directed the appellant to pay Rs. 1,00,000 (Rupees one lac) as compensation in term of section 544-A, Cr.P.C. to the legal heirs of the deceased. .

!2. It is to be noted at this stage that in ;the High Court the learned counsel for the appellant did not challenge conviction of the appellant under Section 302,'P;P,C. but he confined his submissions only to reduction in sentence from death to life imprisonment. Similarly, in this Court also at leave stage the learned counsel only argued for substitution of sentence from death to life imprisonment. The relevant portion of the leave granting order ; reads:- " v.

. ' "In seeking leave to appeal, the learned counsel for the petitioner , has only argued on the question of sentence and Vehemently contended"that in the F;I.R.,registered in the case the complainant , himsd f had disclosed ihat the motive for committing murder on.the. r ; , part of the petitioner was that the deceased had . cut dirty jokes with ' . the sister of the 'petitioner,' It . ' is contended that the motive as v Y disclosed in the F.I.R. related to/family honour and, tiierefore, in t 'such circumstances . instead of awarding death sentence, the .

- petitioner should have beenawardedthe lesser punishmentoflife . imprisonment. The contention raised:by the learned counsel requires , ' examination and we, accordinglyr, grant leave to'appeal to consider the same." v "y";

- 3 The jearned coul/:.ie8rag':.'tfae,,:iq>peUt;.:beforle~ us ; also l. confined his submission to the extent of modification in sentence on the same

. ground as noted in the leave granting, orderrIt was submitted that the motive acGordirtgyto prosecution itself .was that the deceased had cut - dirty /vulgar joke with the sister, of the appellant and as it related to the family honour, therefore, the lesser penaty of life imprisonment out of the two provided in (section 302(b), P.P.C. would satisfy the ends of justice. 'Leamed counsel appearing for the State did not oppose, the reduction in the sentence; rather he supported the plea and arguments advanced from the side of the appellaht on this count.

4. The motive:for the crime as alleged in the F.I.R. is as under:-- .

The complainant Zahoor Akbar when appeared in Court as P. W. 11 repeated the same motive when he stated: T

: "The motive was that the accused had. suspected that Muhammad . Tariq injured deceased had cut a vulgar joke with their sister and . thus they committed this offence:"

5 . . The crucial, and decisive question is that-if the motive as alleged by the prosecution and admitted by the defence to be correct then whether on the basis of such a motive the benefit of

lesser penalty can be extended to the appellant under the present dispensation of justice in criminal cases. In a judgment reported in PLD 1996 SC 1, captioned as Abdul Haq v. The State decided by five learned Judges of this Court it was held:-

"It is to be seen now as to under, what particular provision of section 302, P.P.C. in the amended form case in hand will fall. After very careful consideration of the facts of this case and deep scrutiny of amendments made in Chapter XVI of the Pakistan Penal Code in the light of authoritative pronouncements contained in the books and treatises on the subject, it appears that instant case is covered by section 302(b), P.P.C. We are aware of the fact that instant case is covered by section 302, P.P.C. The case in hand would have been covered by section 304, P.P.C. on the plea of grave and sudden provocation in the face of abusive language used by the deceased which provoked the appellant and would have called for lesser penalty than death but now after amendment this plea is not covered in Qatl-i-Khata hence it is to be read within four corners of Qatl-i-Amd as is now defined under section 302, P.P.C. Now since section 302, P.P.C. in the amended form is substantive law not providing any exception covering plea of grave and sudden provocation on account of abusive language which is distinct and separate from the act of Zina as such, it would be deemed to be the bounden duty of the prosecution to prove positively whether case is covered by Qatl-i-Amd liable to Qisas, not liable to Qisas, or liable to Ta'zir, Section 302(b), P.P.C. in the amended form is reproduced once again as under:-- .

Punished with death or imprisonment for life as Ta'zir having regard to the facts and circumstances of the case, if the proof in either of the forms specified in section 304 is not available; or'

In the instant case there are very peculiar facts and circumstances. Muhammad Shafique was on trial on charge of murder of father of the appellant, Muhammad Shafique used to attend the hearing of the case in custody and appellant. Abdul. Haque as complainant in that case also used to attend hearing coming armed with pistol. Plea of Abdul Haque that he fired shots at Muhammad Shafique in the Court-room on the day of judgment for the reasons that before announcement of judgment Muhammad Shafique abused Abdul Haque in Pushto in respect of his wife and wives of his tribe while passing in front of him and on that account Abdul Haque took out pistol and fired at him. This version is sufficiently substantiated by two eye-witnesses P.W.4, Yar Muhammad, and P.W.9, Muhammad . Aziz who have admitted in their cross-examinations that Muhammad Shafique did say something in Pushto which was not understood by them as they were not conversant with the language. In the old law

before amendment the appellant could have got away with; lighter!

: sentence provided in section 304,, P.P.C. In such circumstances;

appellant in this case cannot and should not be punished with Qisas.

. Secondly, proof as demanded under section 304, P.P.C- for Qatl-i-; Amd is not. available because the appellant has not made confession of Qatl-i-Amd as such before the trial Court. True that there is . r 'admission of firing .-by, the ;appellant , at the deceased but that " admission.isto be read not in conjunction with *

.v his specific plea that 'he was ' provoked; by abuses in respect of his wife and wives of his tribe uttered by the deceased which he could

not tolerate. ' /Hurdly,, VMBIEKRPRPD SOED 'in the ! trial. Court in ' support of the charge do not fulfil the requirements of Article 17 of ;: the Qanun-e-Shahadat. For such reasons¹ it can be said

that,

: section 302(b); P.P.C. will apply in this case and the appellant can be punished by way of Ta'zir. _ Under the said provision* power of the Court is not to be exercised.

. ' life , as Ta'zir and nothing less than that. We have also taken into consideration the fact that the appellant, when fired upon, was in custody and in handcuffs and was helpless

and unable to help himself. We have also considered the fact that the appellant is Pathan and as such traditionally very sensitive about

; " anything derogatory to the appellant is not expected to be

reacted very quickly in the circumstances,

we consider that the plea of grave and sudden provocation on account of abusive language cannot be rested, as the appellant is

awarding sentence under Ta'zir even if this plea as such is not available and does not get any protection in the new amended law."

V ; There is no denying the fact that the trial Court did not go through the evidence. Sbahp<*d"-vibile- recording the evidence and it was also not necessary to do so when the petitioner was tried under section 302(1); P.P.C. was awarded death sentence. The majority of the learned Judges of the High Court in the said case had held, that as the new law contains no exception, therefore, the plea of grave and sudden provocation was not available. This aspect of the case was dealt with in the judgment of this Court referred to above in this manner:
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, - r "Plea, of, grave and sudden provocation on account of abusive language, in circumstances, could be treated as mitigating :

circumstance: in awarding sentence under Ta'zir even if said plea as such was not available and did not get any protection in the law [as amended]™ Accused was thus ordered to be sentenced to imprisonment for life; in circumstances."

- It was, therefore, finally held in the above-cited judgment that the plea of grave and sudden provocation and loss of power of self-control on :

that count are relevant facts to be considered while awarding sentence under section 302(b), P.P.C: but not under section 302(a), P.P.C. In the present case as admittedly the trial in the case proceeded under section 302(b), P.P.C. and not under section 302(a), P.P.C. as the mode of "Tazkia-al-Shahood" had not been adopted by the trial Court in order to adjudge the witnesses as truthful and who abstained from major sin, therefore, in view of the dictum in the cited case the benefit of provocation can be given in a matter of awarding sentence under section 302(b), P.P.C. and as such the cases decided before the amendment in the law involving family honour and provocation can be taken into consideration while determining the factum of sentence. It was held in "Ajun Shah v. The State" PLD 1967 SC 185:

"That a man is after all a creature of his environment. His action ' therefore must be judged in the background of the society to which he belongs.

Though he may not be entitled to rely on the doctrine of provocation, still the above circumstances may be taken into account for not imposing the extreme penalty."

Rule laid down in "Muhammad Din alias Manna v. The State" 1976 SCMR 185 is to this effect:-

"Coming now to the question of sentence, we find that there is merit in the submission made by Ch. Fazal-i-Haq that the murder of Khushi Muhammad was motivated by a sense of family honour. Inasmuch as the sister of the appellant had repeatedly eloped with this man. In *Fazal Khan v. State* (PLD 1964 SC 54) *Ghulam Rasul v. Ali Akbar* (PLD 1965 SC 363), *Muhammad Ramzan v. The State* (PLD 1966 SC 129) as well as in *Ajun Shah v. The State* (PLD 1967 SC 185) it was observed that questions of family honour, touching the females of a family, were of almost overpowering importance to the agricultural tribes of the western regions and they feel bound in duty to go to very great lengths to vindicate that 'honour. It was held that this was a circumstance of which notice could appropriately be taken by the Courts in the matter of awarding sentence. In all these cases, sentence of transportation for life was considered as being appropriate. Following these precedents we are inclined to the view that in regard to the murder of Khushi Muhammad, the sentence of death was not called for. We would accordingly set it aside and instead substitute the sentence of imprisonment for life."

Observation in "*Allah Ditta v. The State*" and "*Muhammad Ashiq v. The State*" 1983 SCMR 322 justifying lesser penalty in cases involving family honour is as under:-

"The learned counsel then submitted that the facts of the case, call for a lesser sentence inasmuch as that the appellant had shot at Allah Ditta (deceased) in vindication of his family honour, the former, having abducted a girl of his family. We, therefore, partly accept the appeal and while maintaining his conviction under section 302,

P;P.C. reduce his sentence from death to imprisonment for life."

The judgment reported as "*Boota v. The State*" PLD 1981 SC 196 is also relevant as it was held therein:

"Sentence---Mitigating circumstances--Family honour-Deceased's . brother having abducted younger sister of appellant 7/8 months earlier to occurrence, appellant having requested deceased on many occasions to restore her and restoration having been put off for such long period, appellant, after exhausting all peaceful avenues committing offence in utter disappointment and exasperation, offence, held, committed on account of family honour and such

- being a mitigating factor appellant entitled to lesser sentence of , transportation for life." *

. The rule laid down in "*Hassan Din v. Khadim Hussain and others*"

1982 SCMR 581 is also on the above lines as it was stated therein:

V "*Murder-Family honour--Motivation for murder stated by ' prosecution itself to be vindication of family honour-High Court . held, rightly reduced ' sentence of death to one of life imprisonment--No violation of any principle of law being legal, interference declined."*

The case reported in "*Ahmad etc. v. The State*" 1982 SCMR 1049 also lays down:

"As, according to the prosecution case itself, except,for the: family,

, honour there was no other reason which occasioned the murder, it was a case where death sentence should not have been imposed in so 'far as the murder,of Hayat was concerned. So while maintaining his ; convictipn under section 302 we set aside the sentence of death and substitute it by life imprisonment and a fine of Rs.5,000 or in / default of fine 3 years' R.I." -

The dictum in ""kazir Ahmad v I Muhammad Din etc." 1981 SCMR 415 as under:

"As regards the sentence we find that according to the.prosecution case itself the sole motive fi5r the occurrence was the attempt of the respondents to vindicate their family honour involving a female closely, related to all of them. The imposition of death sentence, is . therefore not called for. The convictibn and sentence as ordered by . the trial "Court.is restored with the exceptibn that Muhanuiad;Din , and Nazira respondents shall on conviction under section 302/149, P.P.C. suffer transportation for life instead of death."

The law laid down in "Javaid Iqbal v. The State" 1982 SCMR 447 is to this effect:-

"He had enough time while going to his house tod returning back to the Banna from there he fired auhis adversaries, therefore, the provocation cannot be deemed as sudden. Moreover, as all the ingredients of Exception 1 to section 300, P.P.C. have not been, established (because the provocation was neither sudden nor grave) the appellant cannot be allowed the benefit in the reduction of offence, but due benefit of the provocation which was short of grave and sudden can be extended to him in matter of sentence. The learned trial Judge while considering this aspect of the matter, rightly reduced to reduce the offence from section 302, P.P.C. to section 304, Part I, P.P.C. but on question of sentence, it seems he was under an impression that the abuses of whatever type cannot give rise to any provocation. This general view about abuses, with , respect, it is pointed out, is not correct. It depends amongst other circumstances upon the abuse, the incident in which, it is uttered . and, the parties thereto. In this case tlie complainant side has not disclosed as to what was the language of the abuses. It is thus not possible to give a finding that they were of innocuous type and the view can reasonably be taken that on account of all the circumstances leading up to the firing (details of some of which have not been disclosed by the eye-witnesses)' the appellant a young boy was under some amount of provocation for which the sentence could be reduced."

The rule laid down in "Abdus Sattar alias Babu and others v. The State" 1984 SCMR 832 is to this effect:-'

"Parties appearing at village Panchayat in which altercation

- followed by exchange of abuses took place between deceased and accused in course of which deceased had given ttro slaps to accused- having been separated by Panchayat, accused while leaving, holding out threat that he would teach lesson to deceased, that very day, for slapping him in Panchayat-Held, since slap had been given at Panchayat by deceased was an adversary in dispute before Panchayat, same would amount to a provocation-Slapping was, therefore, in nature of a mitigating circumstance and as such extreme penalty of death was not deserved- Sentence of accused reduced to imprisonment for life from death."

It was further laid down in the same case:

"Murder-Reduction of sentence by High Court-Bicycle of deceased while on road! struck ' niece of accused-Girl complained to .accused about deliberate act of deceased which prompted

accused to avenge : grievance and accused killed deceased-High Court taking notice of -incident and reduced death sentence passed by trial Court to life , imprisonment--Supreme. Court, held, reduction of. sentence on ;

. ground of said-incident to be justified." In "Muhammad Ashraf v: The State" -1981 SCMR 856 it was held:,

i - "Murder-Grave provocation-Accused appellant stating to have . been suspecting his wife's character leading to frequent quarrels between them-Few days before occurrence appellant's wife (deceased) leaving house with but permission of appellant, appellant resenting such conduct very . much and reprimanding her strongly .

, leading to. deceased's parents having visited appellant next morning to patch up ; matter 'and; calm' him down-Some untoward 'incident, obviously, field. occurred on day of occurrence which led appellant, v to attack his own wife (deceased) with a sharp-edged weapon-None of eyewitnesses stating - as to: what happened prior to incident 1 because all of them; reached spot after; attack 'already initiated-

. Number and nature of injuries on person of deceased, indicating

existence of some serious provocation-Appealant", though- not ; successful in proving existence of grave and sudden provocation, as alleged by him, yet clear indication existing of some' serious: provocation having been given to him by his (deceased) just before incident-- Case, in circumstances, held further, not fit for . award of capital punishment-Sentence of death reduced to that of imprisonment for life." . ' , - V / ;;

The law laid down in "Ghulam Rasool v. The State" 1983 SCMR 27 is to this effect: , r y V '.

. v , "Culpable homicide not amounting to murder-Provocation-

; ' Mitigation of offence?-Accused repeatedly ..stating" that deceased used ' to come naked on top of house where wife of accused appellant used:

. V to be present-Such allegation held, makes reasonable ground for reduction of sentence of death to one of imprisonment for life. "

; In a case reported as "Tariq v. The State" 1998 SCMR 1586 the trial Court awarded sentence of life imprisonment instead of death on this ground:, .

" As for the sentence, Tariq accused is a young lad of about 15 years : or so and he took the motive, as discussed above, to his heart; which

involves a bit of family honour and so I take a lenient view and

; ; sentence Tariq accused .to imprisonment for life with fine of Rs.2,000." ...

This judgment of the trial Court was affirmed by the High Court and by this. Court when it was observed:-

- . "Learned counsel for the appellant vehemently argued that the occurrence took place as result of grave and sudden provocation, in

that, the deceased admonished the sister of the appellant on her misbehaviour and that in any case the appellant being a youngster of tender age deserved lesser penalty. We are not impressed by the plea raised by the learned counsel for the appellant. Suffice it to say that the main occurrence took place not as soon as the sister of the appellant was insulted but several hours afterwards. Having regard to the interval between the moment of insult and that of the occurrence, it cannot be said that the provocation was grave sudden enough to take the case out of section 302, P.P.C. Clearly, the murder did not take place as a result of sudden flight in heat of passion but with premeditation. In any event, the learned Trial Court having regard to the facts and circumstances of the case, took the view that the sentence of life imprisonment instead of death would meet the ends of justice. The High Court rightly maintained the conviction and sentence of the appellant in the circumstances of the case. "

The same view was reiterated in "Imtiaz and another v. The State" 1993 SCMR 2285 as it was held:

"It was the case of the prosecution itself that the deceased had seduced the sister of the petitioner. This being the motive for the

occurrence, it was not a fit case where the sentence of death should have been imposed."

In "Abdur Rashid v. The State" 1989 SCMR 165 it was ruled out and held: .

"Held, once it was admitted that incident was as a result of outraging, modesting or dishonouring of womenfolk, the accused earns for himself an advantageous position to a certain extent-Even though incident involving family honour had taken place 5/6 years earlier, appellant being a young man must be carrying in himself the sting of continuing provocation, which furnished an extenuating circumstance for a lesser penalty- Conviction maintained but sentence of death altered to imprisonment for life-Sentence under Ss.302 & 307, P.P.C. ordered to run concurrently and benefit of S.382-B, Cr.P.C. allowed."

The dictum in "Muhammad Afzal v. The State and another 1987 SCMR 1864 is:

"Held: On prosecution's own showing respondent had killed

. \ deceased in order to rehabilitate his family honoiir-Case was . therefore not a fit one where capital sentence should have been awarded-Leave to appeal refused."

It is thus proved on record that the immoral act of vulgar and filthy abuses of the deceased resulted into his death, therefore, in such circumstances the accused in the light of the above decided cases- would not be liable to the maximum penalty of death. The ends of justice would be better served if he is sentenced to life imprisonment . Consequently , while maintaining the conviction of the appellant under section 302(b), P.P.C. his sentence is reduced to life imprisonment but ,the amount of _comper.sation would remain intact; However, benefit under section 382-B, Cr.P.C. is extended and the period spent as uridertrial prisoner should be counted towards substantive imprisonment. - .

v- : '(sd.)

, ABDUR REHMAN KHAN, J.

I have appended a separate note maintaining the conviction and death sentence of the appellarit and dismissing the appeal. ; :

'\ 'i (Sd.)' *

; HAMID ALI MIRZA, J. ,

. HAMID ALI MIRZA, J.--I have had the benefit of reading the majority judgment authored by my learned brother Abdur Rehriian Khan, J., converting the death sentence of the appellant into life imprisoionent, and, with great respect, I do riot agree and proceed to record my own reasons.

y , In this, appeal,' appellant Muhammad Imran alias Mani was convicted for the murder of Muhammad Tariq Javed, aged 18 years, under section 302, P.P.C. and sentenced to death by learned Additional Sessions Judge by judgment dated 29-3-1994. The appellant appealed against the said conviction and sentence to the High Court and a murder reference under section 374, Cr.P.C. was also made by the trial Court for confirmation of the sentence of death. A learned Division Bench of the High Court maintained, the conviction and sentence of the appellant and also "affirmed the reference. .My learned brothers, while.maintaining the conviction of the appellant, have altered his death sentence to life imprisonment on the ground that it was proved on record that it was the use of vulgar and filthy language, by the deceased in respect of a sister of the appellant which led tp the death of the deceased. My learned brothers have relied; upon following cases for conversion of appellant's death sentience into life imprisonment:-

(1) Abdul Haq v. The State PLD 1996 SC 1; '

(2) Ajun Shah v. The State PLD 1967 SC 185; ,

, (Hamid Ali Mirza, J) .

(3) Muhammad Din alias Manna v. The State 1976 SCMR 185.;

(4) Allah Ditta v. The State and Muhammad Ashiq v. The State' 1983

SCMR 322;

(5) Boota v. The State PLD 1981 SC 196;

(6) Hassan Din v. Khadim Hussian 1982 SCMR 581;

(7) Ahmed etc. v. The State 1982 SCMR 1049; '

(8) Nazir Ahmad v. Muhammad Din 1981 SCMR 415;

(9) Javaid Iqbal v. The State 1982 SCMR 447; ; v

(10) Abdus Sattar alias Babu and others v. The State 1984 SCMR 832;

(11) Muhammad Ashraf v. The State 1981 SCMR 856; ,

(12) Ghulam Rasool v. The State 1983 SCMR 27;

(13) Tariq v.. The State 1998 SCMR 1586; .

(14) Imtiaz and another v. The State 1993 SCMR 2285;

(15) *Abdur Rashid v. The State* 1989 SCMR 165; .

(16) *Muhammad Afzal v. The State and another* 1987 SCMR 1864.

With great respect to my learned brothers with regard to their reasoning in arriving at the conclusion by reducing the sentence of death upon the appellant, I do not agree, It is the settled principle that the question of sentence in each case must be determined on the facts of the case, therefore, we have to consider as to what were the circumstances of the instant case warranting lesser sentence than the normal sentence of death. It is also the settled proposition of law that in murder cases death sentence is ordinarily to be imposed unless the trying Judge for the reasons to be recorded by him considers it proper to award lesser penalty. There is also no cavil with the proposition that if the Court is satisfied that there are mitigating circumstances then it would be justified in imposing the lesser penalty of two sentences provided by law. In the instant case, it would have to be examined whether there were mitigating circumstances available in favour of the appellant toward lesser penalty than the normal penalty of death? It would not be out of place to state here that before the trial Court no such plea of alleged immoral act of vulgar and filthy abuses was raised or pleaded. It was only before the High Court that learned counsel for the appellant raised the said plea which, on scrutiny of evidence on record, would find no place in the evidence recorded.

The facts in brief were that- on 12-11-1992, appellant alongwith his brother Muhammad Zafar, co-accused, trespassed into the, house of . complainant Zahoor Akbar being armed with revolver and pistol respectively in furtherance of common intention and- caused fire-arm injuries to the deceased Muhammad Tariq Javed on the right side of his head above the . right ear who as a result of injuries died on , 13-11-1992. It would be seen from the trend of cross-examination- conducted by learned counsel for the appellant that no case with regard to. provocation on account of vulgar or filthy abuses was put or suggested made by Bashir Ahmed (P.W.8), Liaquat Ali (P.W.9), Zahoor Akbar (P.W. 11) and Mst. Manzooran Bibi (P.W.12)

that _the ' deceased, had cut vulgar jokes with the, appellant's sister, which annoyed him, therefore, he. killed the deceased. On the contrary the appellant, in his statement"-under 'section 342 Cr.P.C; in reply to question No.12, stated that. he was falsely implicated. in ,the case because the complainant had a doubt that former had instigated the deceased Muhammad Tariq Javed to make, claim of his property from the complainant. The ease of,

. the co-accused Muhammad Zafar, the brother of the appellant, was also same' in his statement; under section 342, Cr.P.C- to that of the appellant. It was only in the F.I.R. that the motive; was stated by the complainant that the ; appellant suspected that the deceased had cut vulgar jokes with .his sister.. In fact the. appellant and " his brother co-accused in their- statements under section 342, Cr.P.C.' denied that any vulgar jokes were cut by the deceased in respect of; their sister,, which annoyed them.; It would also be seen that , complainant Zahoor Akbar, in his cross-examination stated, that, he did not know the name of the sister, of the appellant/accused but he knew that she was 30 years of age and that they had got Parda Nasheen houses and that he had heard that the sister of the appellant/accused was a divorcee and that the deceased had never cut any jokes with anybody in his presence and that, the motive was not in his personal knowledge. Neither, the prosecution,, nor the defence has ..admitted that . the deceased- was killed by the: appellant because the former had' cut vulgar-jokes in, respect of. appellant's sister.' There is nothing in evidence' on . record .to substantiate the alleged mitigating * circumstance of vulgar and filthy abuses in -respect of the sister of the appellant by the deceased, except the statement of the complainant in F.I.R. :that the appellant suspected that ;the deceased had cut vulgar jokes in respect of his sister. This fact itself was denied, by the

appellant and his brother coaccused, so also, by the complainant in his statement that he only suspected and had no personal knowledge; It would also be seen. that, no such arguments.

were. advanced before the learned trial Court by the learned counsel for the. appellant. It was only before the High Court that the learned counsel- for the appellant pleaded that-he would not challenge the conviction but would request that sentence be converted to life imprisonment as the motive in the instant case was shrouded in mystery because, nobody knew what happened immediately before the occurrence and the appeal was not argued on merits. He also contended that complainant Zahoor Akbar (P. W. 11) stated in the F.I.R. that the appellant had a suspicion that the.

deceased had cut vulgar jokes with his sister, therefore, it was not a case of death sentence because the appellant had committed the murder for his family honour. The learned Judges of the Division Bench in paragraph 9 of the impugned judgment had dealt with the said contentions as follows:-

"The appellant, either during the trial or in his statement under section 342, Cr.P.C. never took the plea that he killed the deceased in order to vindicate his family honour. His case during the trial and in his statement under section 342, Cr.P.C. was that he has been falsely implicated because the complainant had a doubt that the appellant had instigated the deceased to make the claim of his property from his maternal uncle i.e. complainant Zahoor Akbar P.W. 11. So in this view of the matter, the submission made by the learned counsel for the appellant that deceased was done to death to vindicate family honour is devoid of force, not supported by any evidence on record and belied by his own plea under section 342, Cr.P.C. We may also refer to cross-examination conducted on P.W. 11, Zahoor Akbar in paragraph 2 at page 39 of the paper book.

"I do not know the name of the sister of the accused but she is about 30 years of age. We have Pardaynasheen houses. I have heard that the sister of accused is a divorcee. It is incorrect that the said lady is 40/45 years old. Deceased had never cut any joke with anybody in my presence. This fact came to my notice from the accused person. Before the present occurrence, I was not in know of the fact that the accused person had any suspicion, of any cutting of joke with their sister. No body had ever complained about it to us before this occurrence. It is correct that the motive was not in my personal knowledge before occurrence but I have heard it from the accused, at the time of occurrence."

"It seems highly improbable that deceased who was 18 years would cut joke with a lady who was aged 40/45 years more than double his age and a divorcee. Complicity of appellant stands further proved by recovery of crime empty which matched with weapon of offence, recovered at his instance.",

It was held in PLD 1976 SC 452, titled as Muhammad Latif v. State, a Full Bench Judgement, that inhibition or hesitation on part of trial Courts in awarding normal penalty of death sentence, shows marked tendency of find laboured pretext to alter death sentence to life imprisonment. No doubt having regard to the sanctity of human life and liberty, the law has taken all conceivable precautions to safeguard it. Viewed in this background, the marked propensity of the Courts to avoid, death penalty at the trial or allow unjustified commutation in appeal followed by frequent remissions or sentences both earned and conferred is about to take away the sting of deterrence, thus indirectly contributing to the incidence of heinous crime of which the Courts cannot fully escape their share of responsibility: It was also held in the said judgment that sentence under conviction one recorded under section 302, P.P.C. in a case of premeditated and concerted attack launched with intention of killing, normal penalty of death be ordinarily exacted from such convicts and no discrimination justifiably permissible on subh score in matter, of

sentence. X-'', '

It was also held in PLD 1992 Peshawar 40 titled as Saeed Gul V. State that absence of motive did not deter the Courts to award the-normal sentence of death as provided under section 302, P.P.C. For itere suspicion without any solid proof, taking of life of an innocent . person is a serious kind of offence which must be made with highest punishment. In such-like cases motive remained.an uncertainty. The plea of absence of motive will not debar the Court to award normal 1 sentence of death as provided under section 302, P.P.C. The Courts have always refrained from lying down any general rule finding classes of cases in which lesser sentence was imposed. For an . intentional; murder, in the absence of any mitigating circumstance,

, death sentence, is the normal sentence. The murder in this case was , indeed an intentional one. The appellant came armed with pistol and .fired shot which hit the deceased on his vital part of the body arid-proved sufficient to cause death in .the ordinary course of nature.

; The appellant, was .also responsible for ending a young life, .therefore, this is. not a fit case which calls for interference in the sentence passed by the trial Court. It has been held by the superior Courts of the country that once, the charge in the murder case is proved beyond reasonable doubt, normal sentence is death. In the ! instant case, the appellant killed the deceased by launching premeditated attabk by trespassing into his housje in the broad daylight. One cannot .presume that something might have happened immediately preceding the incident. We, therefore, are of the view that this is a fit case where the death sentence should.be imposed and ' no mitigating - circumstance exists to alter it to life imprisonment." y .

, , The case-law cited by my learned brothers would apply only when there is evidence on record that the appellant committed the murder of the deceased as the latter had cut vulgar jokes in respect of appellant's sister amounting to provocation as a ground of mitigating circumstance to.vindicate the family honour. T

Now I will take up the case-law relied upon by my learned brothers with respect to show that in view of the evidence stated above, the cases cited are inapt to the instant case of warranting lesser sentence.

(i) 'in Abdul Haq v. The State PLD 1996 SC 1 Muhammad Shafiq (deceased) was in jail custody and was brought before the trial Court when the matter was fixed for announcement of judgment in respect of the incident wherein the deceased was facing trial in respect of the murder of the appellant's father. The evidence was brought on record that the deceased when passed in front of appellant had sworn that, if acquitted, he would commit Zina (fuck) the wife of the appellant and the wives of the whole of his tribe, and that was the defence taken by the appellant by making suggestion and also stated same in his statements under sections 342 and 340(2), Cr.P.C., consequently, treating the same to be a mitigating circumstance, lesser sentence of life imprisonment was awarded. But in the instant case there is no such mitigating circumstance available on record for the award of lesser sentence to the appellant.

(ii) In Ajun Shah v. The State PLD 1967 SC 185, the appellant's motive for the crime was to avenge the murder of his. father and brother and it was the matter of tradition and even family duty to avenge the murder of father in the Province of N.-W.F.P, and when the appellant saw Fazal Raziq (deceased) going in a tonga, he, being a boy, his mind became obsessed with one thought, to do away with the alleged murderer of his father and brother, and, on seeing the deceased in the tonga, he lost his balance and fired at him, which resulted in the death of the deceased. In the instant case there is no question of avenging the murder of any of the near or dear relation of the appellant so as to apply the cited case to the facts of the instant case.

(iii) In Muhammad Din alias Manna v. The State 1976 SCMR 185, the motive for the crime was that the sister of the appellant, by name Mst.

Nazeeran, had repeatedly eloped with deceased Khushi Muhammad and every time she was restored to her parents through the good offices of the village Panchayat and when on 20th January, 1966, at about 2-00 p.m. the appellant saw deceased Khushi Muhammad, he fired at him, which was said to be the murder to vindicate the family honour as the sister of the appellant had repeatedly eloped with the deceased. The instant case is not of the elopement of the sister or any near relation of the appellant to hold the same to be a mitigating circumstance for lesser sentence.

(iv) In Allah Ditta v. The State and Muhammad Ashiq v. The State

1983 SCMR 322, deceased Allah Ditta had abducted the sister of Ellahi Bux co-accused, who was returned to her family on the next day. The appellant accused having found an opportunity committed the murder. In the cited case, in view of the said motive, the Sessions Judge-awarded imprisonment for life to all the three accused, while the High Court, on appeal, acquitted accused Ellahi Bux and Shah 'Nawaz and enhanced the sentence of Allah' Bux from imprisonment for. life to death. Appellant Allah Bux filed an appeal before this Court, while Muhammad Ashiq filed a petition for leave to appeal against the acquittal of two co-accused Ellahi Bux and Shah Nawaz when this Court accepted the appeal of Allah Bux and reduced the sentence from death to life imprisonment holding that the appellant had shot at the deceased in vindication of the family honour as the former had abducted the girl of his family. The instant case is not of abduction of a girl of the family of the appellant.

(v) In Boota v. The State PLD 1981 SC 196, the brother of Ahmad (deceased) had abducted the younger sister of the appellant namely Mst. Saleeman seven or eight months earlier to the occurrence when the appellant had requested the deceased on many occasions to restore her and die restoration was put off for such a long period and all peaceful avenues in; vain and in utter disappointment the murder was committed by the appellant on account of the family honour. It was considered to be a mitigating circumstance, therefore, lesser sentence of transportation for life was awarded. In the cited case the eye-witnesses had admitted that deceased Ahmed, the elder brother of Yara, had abducted Mst. Saleeman, the younger sister of the appellant, aged 15/16 years, and Boota had suspected Ahmad for, having hand in the abduction was not repudiated by Aamir P.W. when it was made to him. In the cited case the prosecution admitted that although the deceased used to assure the appellant that Mst. Saleeman would be returned but all efforts by Boota had proved fruitless. In the instant case there is no such ground or evidence of abduction of a member of the family of the appellant. \ . ' . . V

(vi) In Hassan Din v. Khadim. Hussain and-others 1982 SCMR 581, the Division Bench of the High Court, on appeal and reference, maintained the conviction but reduced the sentence. The appellant had committed the crime because of the family honour therefore the death sentence was not confirmed but reduced to life imprisonment as it was a case of illicit relations of Mst. Rashida, the _ sister of the appellant, .

with Muhammad Ilyas (deceased) and said commission was considered to be the vindication of family honour. The instant case is not of illicit connection with the sister of the appellant : It may be noted that in the instant case the entire evidence even the name of the appellant's sister has not been mentioned so also what was the language of the alleged abuses to the sister of the appellant. .

(vii) In Ahmad v. The State'1982 SCMR ,1049, the trial Court found the four appellants as well as Nemat guilty. of the offences under sections 148, .302/149 (two counts) and'323/149; P.P.C. and convicted accordingly, Nemat and Abbas were sentenced to death and others to life imprisonment on the murder charges., On appeal and while dealing with the murder reference,- the learned High Court gave benefit of doubt to Nemat and

- (Hamid Ali Mirza, J) , ,

acquitted him. In view of the acquittal of Nemat, conviction under section 148, P.P.C. was set aside and under the substantive offences, it was altered from section 149, P.P.C. to section 34, P.P.C. In other respects the sentence awarded by the trial Court was maintained. So far as Arif, Ahmed and Aramat, their convictions and sentences on all charges were set aside. The conviction of Abbas for the murder of Hayat was maintained. However, even according to the prosecution case itself, except for the family honour there was no other reason which occasioned the murder, it was considered to be a mitigating circumstance where death sentence was not required so far as the murder of Hayat was concerned as deceased Hayat was suspected of maintaining illicit relations with Mst. Rasoolan, the daughter of the appellant. The instant case is not that of illicit relations with any of the womenfolk of the appellant so as to treat the same to be a mitigating circumstance for lesser punishment. ,

(viii) In Nazir Ahmad v. Muhammad Din and others 1981 SCMR 415 deceased Mushtaq was suspected of maintaining illicit relations with Mst. Nawab Bibi, a young unmarried daughter of Manak who had earlier also seen the deceased in the vicinity where his said daughter was washing clothes when he had reprimanded Mushtaq in presence of Noor Khan (P.W.II) and such grievance was made to Khuda Bux (P.W.10), the father of the deceased, and Nazir Ahmed (P.W. 12), a cousin of the deceased. The appellant was said to have fired from his gun killing Mushtaq, and also injuring co-accused. In the said case Muhammad Din and five others (Nazeeran, Ameer, Ghulam Rasool, Fazal Ahmad and Munak) of the same family were found guilty by the Sessions Judge having caused deaths of Nazra and Mushtaq and injuries . to others and convicted under section 302/149, P.P.C. Muhammad Din and Nazira were sentenced to death and four others to transportation for life. On the criminal appeals filed by the convicts, the murder reference made by the Sessions Judge and the revision filed by Nazir for enhancement of the sentence of four of the convicts who were sentenced to transportation of life, the conviction and sentence of Manak on all the charges was set aside, the conviction and sentence 'of others under section 302/149, P.P.C. was set aside and substituted by conviction under section 304, Part I, P.P.C.'read.with section 149, P.P.C. giving them the benefit of Exception IV to section 300, P.P.C. The sentences of death were not confirmed and instead Nazira convict was sentenced to ten years' R.I., while all others to four years' R.I. under section 304, Part I, P.P.C. On complainant's petition leave was granted and this Court observed that the trial Court was justified in believing the evidence, therefore, while accepting the appeal, set aside the acquittal of the respondents on the charges under section 302/149, P.P.C. recorded by the High Court and restored the conviction as recorded by the trial Court. However, it was found by this Court that according to the prosecution case itself the sole motive for the occurrence was the attempt of the respondents to vindicate their family honour involving a close female relative of all of them, therefore, the death sentence was held to be uncalled for. The instant case is not that of illicit relations with any womenfolk of the appellant, therefore, the said cited case would not be applicable.. ; .

(ix) In the case of Javed Iqbal v. State 1982 SCMR 447, the trial Court convicted and sentenced the appellant to death for murder. On appeal, the Division Bench of Lahore High Court confirmed, the finding of guilt and maintained the sentence of death of the appellant. This Court refused

leave so, far as finding of guilt under section 302, P.P.C. was concerned and granted leave to appeal on the question of sentence that the Courts below had not given due consideration to the age of the appellant who was 14 years, 9 months old at the time of occurrence: and in the said circumstances extreme penalty of death should not have been imposed upon the appellant when the cause for occurrence was that, the appellant was teased by three boys including the deceased of the complainant party when the latter, in return, gave him abuses and the act of teasing on the part of the appellant was. that he was kissed. However, this Court observed:-

"The learned trial Judge while considering this aspect of the matter,

rightly refused to reduce the offence from section 302, P.P.C. to section 304, Part I, P.P.C. but on question of sentence, it seems he was under an impression that the abuses of whatever type cannot give rise to any provocation. This general view about abuses, with respect, it is pointed out, is not correct. It depends amongst other circumstances upon the abuse; the incident in which it is uttered; and, the parties thereto.

In this case the complainant side has not disclosed as to what was the language of the abuses. It is thus not possible to give, a finding that they were of innocuous type and the view can reasonably be taken that on account of all the circumstances leading up to the firing (details of some of which have not been disclosed by the eye-witness) the appellant a young boy, was under some amount of provocation for which the sentence

could be reduced." -

This Court, considering all the aspects, of the case, such as age of the appellant/accused, the only shot fired by him, etc., reduced the sentence of death to that of life imprisonment. The facts and circumstances of the instant case are quite different from that, of the cited case.

(x) In *Abdus Sattar alias Babu and others v. The State* 1984 SCMR

832, the deceased had given a slap to the accused at the village Panchayat,

which was considered to be a provocation and a mitigating circumstance for imposition of lesser sentence. In the cited case, the trial Court awarded death sentence to the appellant and the co-accused, while the High Court reduced the sentence of Fazal Qad. but maintained that of Abdul Sattar. However,

this Court, considering the act of slapping by the deceased to the appellant at Village Panchayat as 'provocation' and treating the same as a mitigating circumstance, reduced his death sentence to life imprisonment. The instant case is not of giving of slap before a Panchayat by the deceased, to the appellant. So far the further observation in respect of the abovesaid case, reproduced by my learned brothers, the same could not be found in the cited case.

(xi) In *Muhammad Ashraf v. The State* 1981 SCMR 856 the appellant suspected the character of his wife Mst. Almas Begum (deceased) and on the date of occurrence, when he returned to his house out of schedule as he had finished his work earlier than usual, he saw the deceased in compromising position with Javed, a brother of Mst. Jamila, and consequently lost his temper, picked up Bughda lying in the house, inflicted injuries to Mst. Almas deceased under the impulse of sudden and grave provocation when the said Javaid managed to escape. On the basis of the above evidence, the trial Court convicted the appellant under section 302, P.P.C. and sentenced him to death. The High Court dismissed his appeal. However, this Court held that the above circumstance gave clear indication that there was some serious provocation which had been

given to him by his wife just before the incident, which caused the appellant to attack her in such manner, therefore, sentence of appellant was reduced from death to life imprisonment. The instant case is not that of the husband suspecting the character of his wife who had left her house without permission and was seen in a compromising position with one JaVaid.

, (xii) In *Ghulam Rasool v. The State* 1983 SCMR .27 the appellant was convicted for the murder of Abdul Ghani and Khalid Mehmood under section 302, P.P.C, and sentenced to death on both counts. On appeal, the Division Bench of the High Court confirmed the death sentence and rejected his appeal, maintaining his conviction under section 302, P.P.C. This Court in a jail petition filed by the appellant granted leave to consider the question of sentence only. The motive given was that the appellant suspected the two deceased for teasing his wife. The appellant in his statement before the trial Court stated that his wife was. in the-Veranda of his house when the deceased Abdul Ghani became naked at the top of his house while Khalid Mehmood deceased made indecent gestures to his wife and he was offering Magrib prayers at that time. At the mid-night he found that his wife was not on her bed and he went in search of her and found her sleeping in the cot of Abdul Ghani deceased while Khalid Mahmood was also sitting there and keeping a guard consequently he was provoked and lost his control, picked up a Kassi from the field and gave blows with it on the neck of Abdul Ghani, while Khalid' Mahmood grappled with him, so he attacked him too. In the meantime his wife ran away. This Court observed:-

"General speaking gestures or words do not amount to sufficient v . . provocation to reduce homicide to culpable homicide not amounting to murder. The injuries, etc. must have been inflicted immediately " upon provocation being given and before the anger has had time to subside and the provocation must be of a kind which would deprive the ordinary man of his self-control." : :

This Court observed:-- .

"... .. that itself has relied on the fact that two deceased were teasing the wife of the appellant and there is no escape from the conclusion that the accused was smarting under the feeling of disgrace to his wife and this fact, has been repeatedly stated by. him , .that the two deceased used to come naked on the top of the house . where .the wife of the accused appellant used to be present." , ,

The said ground was considered to be a reasonable ground for reducing the penalty of death to imprisonment for life." The instant case is of not of such a nature as stated, so as to warrant reduction in the sentence.

(xiii) In *Tariq v.-The- State* 1998 SCMR 1586, Mst. Munaza, the sister of the appellant, was seen by Mst. Sughra Bibi stealing pumpkins (Kuddus) from her fields; Both the women were grappling with, each other, when Khushi Muhammad came there, and separated the women and admonished Mst: Munaza, the sister of the appellant saying that she was not only committing theft but also aggressive, upon which she, left the spot saying that she would avenge her insult. After, some time she came, along with the appellant, aged 15 years, .who was armed with a carbine. The appellant abused Khushi Muhammad and then fired an effective shot which hit the deceased who. subsequently died. The Sessions Judge convicted the appellant under section 302j P.P.C. and sentenced;him to imprisonment for life, and acquitted Mst. Munaza, the co-accused, of the charge.. The High Court maintained the conviction and sentence of the. appellant but gave him: the benefit of section 382-B, Cr.P.C. The appellant-accused, filed a petition for leave to appeal on the question of sentence, but his Court dismissed the same, holding that there was no grave and sudden provocation as,..the occurrence had taken place not as soon as the sister of the appellant was1 allegedly insulted but several hours after the alleged

insult. The instant case is not of the same circumstances, and evidence which could be treated as ground for the reduction of sentence at the level of this Court when the learned Division Bench of the High Court and the Sessions Court have concurred in the sentence of the appellant to death.

, (xiv) In *Imtiaz and another v. The State* 1993 SCMR 2285 an Additional Sessions Judge convicted and sentenced the appellant under section 302, P.P.C. for causing the murder of Muhammad Hussain. On appeal and for reference the High Court maintained the conviction of the appellant but reduced the sentence of death to life imprisonment. The petitioner sought leave to appeal from his conviction and sentence and the complainant also filed a petition seeking restoration of the sentence of death. At the trial the petitioner did not deny that he had shot at and killed the deceased but alleged that on the fateful night he felt that some one had trespassed into his house, so he woke up and shot at the trespasser with the rifle of his brother and when he lit the light he found that it was the deceased who had trespassed into his house. This Court finding no dragging marks on the person of the deceased came to the conclusion that the deceased was, in fact, killed inside petitioner's house when the prosecution case was that the deceased was passing through Bhulwal Chowk when the petitioner came armed with 7 mm rifle and fired at this and it was the case of prosecution itself that the deceased had eloped the sister of the petitioner. Therefore, this Court held that it was not a case where sentence of death should have been imposed. The instant case is not of the nature and evidence as in the reported case.

, (xv) In *Abdur Rashid v. The State* 1989 SCMR 165 the motive for commission of the crime was that Mushtaq Ahmed (the acquitted accused), had raped the wife of Muhammad Aslam in 1977. He was convicted and sentenced to five years' R.I. In retaliation Muhammad Siddique deceased and Muhammad Aslam P.W. had molested the sister of the appellant and the acquitted accused. They were tried, convicted and sentenced to one year's R.I. Therefore, the appellant along with his two brothers, namely, Mushtaq and Sarwar came when the appellant fired a shot from his pistol, which hit deceased Muhammad Siddique and his cousin Muhammad Aslam. The trial Court sentenced the appellant to death for committing the murder of Muhammad Siddique and further sentenced him under section 307, P.P.C. for attempting at the life of Muhammad Aslam. Mushtaq and Ghulam Sarwar were acquitted giving them benefit of doubt. The High Court dismissed the appeal of appellant Abdur Rasheed, so also the revision filed by the complainant. This Court granted leave to consider whether in the facts and circumstances of the case the appellant was entitled to lesser sentence. It was observed:-

"Once it is admitted that the incident was as a result of outraging, molesting or dishonouring of womenfolk, the accused earns for himself an advantageous position to a certain extent. In the case in hand though the incident of molestation of the sister of the appellant by the deceased and his cousin Muhammad Aslam P.W. had taken place 5/6 years earlier, the appellant being a young man must be

carrying in himself the sting of continuing provocation which furnishes an extenuating circumstance for a lesser penalty."

The instant case is not of such evidence and such circumstances with regard to outraging, molesting and dishonouring of womenfolk as no such evidence was brought on record, so also no such plea in the statement of appellant was made before the Sessions Judge.

, (xvi) In the case of *Muhammad Afzal v. The State*. 1987 SCMR

1864 Salabat was convicted and sentenced to death under section 302, P.P.C; for causing the

death of Khurshid .deceased" Oil appeal and reference, the High Court 'upheld his conviction but reduced the sentence of death to imprisonment for life. Salabat filed a petition challenging his .conviction and sentence and Muhammad Afzal, the . brother of the deceased, also filed a separate petition for enhancement of the sentence of Salabat. The learned counsel appearing for Salabat did not dispute the responsibility of the death of the deceased and the legality, of the conviction but he only addressed the question, of- the- sentence awarded to Salabat petitioner.. This Court observed on the petition of Salabat that he had already been given lesser sentence; by the High Court, therefore, he could not be treated ore leniently, and, on the . .petition of petitioner Muhammad Afzal complainant, it was observed that on prosecution's own showing Salabat had killed the .deceased, in order to rehabilitate his family honour, therefore, it was not a fit case for capital sentence,. The facts of the instant case are quite.different to the facts of the . cited case. '

, After .going through, the abovected cases relied upon by my learned,'

brothers, ! have come to the conclusion that the same are of no help to the appellant's case as discussed and analysed-above. I an of the.considered view that there was no mitigating circumstance at all even of alleged vulgar abuses in the evidence . On record so as to award lesser sentence than the normal sentence. My learned brother Nasim Hasan Shah, J. (as he then.was),,While recording his minority view in Tufail Masih v,. State 1985 .SCMR 838,. has. observed:- . 1

' "The question is that even if it is accepted that the deceased has used abusive language towards the appellant could this circumstance be.

. considered a sufficient provocation to entitle him a servant of the house, to throw down a helpless lady on the ground,- sit on her chest, take out the trouser-string out of her Shalwar and put it around her neck and strangulate her? I do not think so. The display . of bad temper and hurling of abuses cannot in my opinion, entitle a murderer, to the lesser penalty because the provocation which can entitle a killer to the concession of the lesser penalty must of such a kind which should deprive.an ordinary normal man of self-control. In this case the details of the . filthy language-ailedgedly used by the . deceased are not known. On the other hand, the manner in which the appellant murdered. the mistress of the house and a helpless . woman, even if she had hurled abuses at him, cannot be "considered .to be such a provocation Which can deprive an ordinary normal, man ;of his self-control and commit murder in the manner that the

. . appellant has done in this case.- The hurling of abuses by the deceased did not amount, in my opinion, to such a mitigating circumstance as could entitle the appellant to leniency in the matter of sentence in the circumstances of this case." In the case of Sodagar v. The State 1972 SCMR 161 this Court granted leave to consider "whether on account of abuses allegedly given by the deceased, which had infuriated and provoked the accused, he was entitled to any reduction in sentence of death awarded to him? The said proposition was answered in the negative:- - -

"We have heard the learned counsel for the appellant on this matter. He has argued that the appellant would not have committed the murder of his own father unless he was gravely provoked by the abuses hurled at him by his father, which made him. lose his balance to kill his father. The argument is wholly devoid of. any substance. In the first place, it is not shown that the deceased had acted in any reprehensible manner, to invite the dastardly assault on him by his own son. Even if the deceased had administered some rebuke to the appellant, because he was not dealing fairly with his brother, this was hardly a ground for him to be incensed and kill his father. Nor can it be said that the killing by the appellant was done in a fit of rage and provocation, because, according to the prosecution case, the appellant had left the shop and had

returned to it a short while later after having armed himself with a pistol, which he fired at the deceased.- In our view there 'is no extenuating circumstance in this case to merit interference in the legal sentence of death awarded to the appellant."

In the circumstances, agreeing with the finding of the learned Sessions Judge and the learned Division Bench of the High Court on the. point of conviction under section 302, P.P.C. and sentence of death to the appellant in view of the evidence on record, there being no evidence at all on . record to support the use of alleged vulgar language/abuses/jokes in respect of the sister of the appellant except aij allegation in the F.I.R. which fact was neither stated by the appellant nor his brother co-accused in their statements under section 342; Cr.P.C. nor made any suggestion in the said respect in the cross-examination of the P.Ws., examination of the prosecution, no extenuating circumstance existed to warrant award of lesser penalty to the appellant than that of normal sentence of death. Consequently, with great respect, dissenting with my learned brothers, I dismiss the appeal of the appellant, maintain his conviction under section 302, P.P.C. and sentence of death!

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